

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aliza Klingenstein	Team: Squad #07	CCRB Case #: 202102431	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 04/10/2021 6:07 PM	Location of Incident: Broadway between W 135th St. and W 136th St.		18 Mo. SOL 10/10/2022		Precinct: 30
Date/Time CV Reported Sun, 04/18/2021 7:39 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 04/18/2021 7:39 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Avery Jennings	28198	944092	030 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. SGT Olga Peralta	4512	942982	030 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Avery Jennings	Abuse: Police Officer Avery Jennings threatened to seize § 87(2)(b)'s property.			A . Exonerated	

Case Summary

On April 18, 2021, § 87(2)(b) filed the following complaint via the CCRB on-line website.

On April 10, 2021, at approximately 6:07 p.m., § 87(2)(b) pulled into a bus stop located on Broadway between W 135th Street and W 136th Street in Manhattan to drop off her mother. Police Officer Avery Jennings and Sergeant Olga Peralta from the 30th Precinct arrived and PO Jennings issued § 87(2)(b) a summons for standing in a bus stop. PO Jennings threatened to tow § 87(2)(b)'s vehicle if she did not leave the bus stop (**Allegation A: Abuse of Authority, exonerated**).

One Body-Worn Camera (BWC) video from PO Jennings (**Board Review 01**) and one BWC video from Sgt. Peralta (**Board Review 02**) were found in regards to this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Avery Jennings threatened to seize § 87(2)(b)'s property.

In her official interview (**Board Review 03**), § 87(2)(b) stated that she had begun to pull away from the bus stop when PO Jennings and Sgt. Peralta arrived in marked SUV #3657 and blocked her vehicle from leaving. § 87(2)(b) attempted to move her vehicle but PO Jennings exited his vehicle and told her not to leave. PO Jennings approached § 87(2)(b)'s vehicle and wrote her a summons for standing in a bus stop (**Board Review 04**). PO Jennings then told § 87(2)(b) "If you don't leave now, I'm going to have the vehicle towed immediately."

The investigation obtained one video from PO Jennings' BWC (**Board Review 01**) and one video from Sgt. Peralta's BWC (**Board Review 02**) that both capture this incident. In PO Jennings' BWC (**Board Review 01**), § 87(2)(b) is parked within the boundary of the visibly marked bus stop. When PO Jennings and Sgt. Peralta approach § 87(2)(b)'s vehicle at minute mark 00:30, there is a bus double-parked alongside § 87(2)(b)'s vehicle that is prevented from accessing the bus stop. PO Jennings writes § 87(2)(b) a summons and leaves it on the windshield of her vehicle. When PO Jennings and Sgt. Peralta walk towards their vehicle to leave the scene, the first public transit bus has left and a second bus pulls up alongside § 87(2)(b) at minute mark 02:03. § 87(2)(b) has not moved her vehicle. PO Jennings returns to § 87(2)(b)'s vehicle and says at minute mark 02:09, "I'm not going to play this game all night. Move the car or I'm going to have the vehicle towed."

As stated in section 4-08 of the New York City Department of Transportation Traffic Rules (**Board Review 05**), "No person shall stand or park a vehicle other than an authorized bus in its assigned bus stop when any such stop has been officially designated and appropriately posted except that the operator of a vehicle may temporarily stand therein for the purpose of expeditiously receiving and discharging passengers provided such standing does not interfere with any bus about to enter or leave such stop." Further, "Any illegally parked vehicle found parked at any time upon any public highway in the City may, by or under the direction of any person authorized by the Commissioner, be immobilized in such manner as to prevent its operation, and thereafter may be removed to a tow pound as provided in these rules."

§ 87(2)(g)

It is therefore recommended that **Allegation A** be **exonerated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) is a party.
- PO Jennings, a 14-year member of service, has been the subject of four CCRB complaints totaling five allegations, one of which was substantiated. § 87(2)(g)
§ 87(2)(b) (Board Review 06).
 - In CCRB case #200903936, one allegation of Abuse of Authority: Refusal to provide name/shield number was substantiated and the NYPD imposed Command Discipline – B.

Civil and Criminal Histories

- As of May 14, 2021, § 87(2)(b) has not filed a Notice of Claim in regards to this incident (Board Review 07).
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 7

Investigator: Inv. Klingenstein Inv. Aliza Klingenstein May 20, 2021
Signature Print Title & Name Date

Squad Leader: Manager Vanessa Rosen May 20, 2021
Signature Print Title & Name Date

Reviewer: Signature Print Title & Name Date